

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY OF THE CITY OF CHEYENNE

Office of City Clerk

March 2, 2017

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:10 p.m. in City Council Chambers for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS - Rocky Case (leaving the meeting at 6:42 p.m.), Richard Johnson, Mike Luna, Dr. Mark Rinne (arriving at 6:37 p.m.), Scott Roybal (arriving at 7:58 p.m.), Dicky Shanor and Jeff White. Absent: Bryan Cook and Pete Laybourn. Also present were: Kylie Soden, Deputy City Clerk; Sylvia Hackl, City Attorney; Lois Huff, City Treasurer, and Tom Schingle, Interim Chief, Fire and Rescue Department. The pledge of allegiance was recited.

Mayor Orr explained the minimum number of members was present for a quorum of the governing body, and there would be a member leaving and one joining the special meeting so a quorum would be maintained. She advised the meeting would be audio recorded, and stated that Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows the governing body to meet in executive session to consider or tender offers regarding salaries, wages or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further advised if the governing body met in executive session, they would be meeting in the City Council Administrative office, and that Fire Union representatives were welcome to use Room 104 for the purpose of meeting to caucus. She advised that spokespersons for the City are herself and Dicky Shanor, and Jonathan Bertsch and Andrew Dykeshorn are the spokespersons for Local Union #279. Any collective labor agreement that may be reached must be approved by the governing body with the agreement placed on the city council agenda for approval.

Mayor Orr presented information on the City's negotiation team (on file with the City Clerk's office) to the Union and asked if they would accept the City's initial proposal of a 1 year extension of the current contract including a 1% increase to base pay. Mr. Bertsch advised that they reject the offer of the City's initial proposal, and asked if the City accepts the Union's initial proposal. Mr. Shanor advised the City would like to hear the Union's priorities before meeting in executive session to confer on the proposed offer. Mr. Shanor suggested working from the Union's proposal moving forward, and Mr. Bertsch agreed. Mr. Bertsch explained there are amendments within their proposal that are affiliated with a cost, and some that aren't, and that the Union believes that the current contract is in need of some revisions. The Union's top general priorities are: life safety (citizens and members of the department), employee retention and listening to the City's reference points. High priority sections within the contract that are cost affiliated are: Section 22, Classification of Employment and Basic Wages; Section 15, Company Strength, and Section 27, Wellness/Fitness Program. Important sections within the contract that have low or no cost are all of the remaining proposed sections with changes. Regarding the

City's previous request to present information on cost vs. revenue, Mr. Bertsch explained that costs will ultimately be calculated through the City's projections, and they are trying to avoid costs affiliated with losing employees. He provided information on proposed Section 46, Wildland, explaining that by the end of 2019, the program can potentially be operating "in the black" with startup fees being covered and a net gain being realized by the department and City. Mr. Shanor moved to meet in executive session, seconded by Mr. Johnson. Motion carried. Voting "yes" – all members of the governing body present. [City Clerk note: Audio recording of the meeting was stopped; executive session convened at 6:33 p.m. in the City Council Administrative office]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 8:08 p.m. [City Clerk note: Dr. Rinne joined executive session at 6:37 p.m.; Mr. Case left executive session at 6:42 p.m., and Mr. Roybal joined executive session at 7:58 p.m.]. She stated the City's priorities are overtime predictability, management rights and sustainability of the service structure, and provided an explanation for each priority. Mr. Shanor advised that the City rejects the Union's proposed offer, and will work from the Union's proposal presenting counteroffers (copies provided and on file with the City Clerk's Office), which following conclusion of the special meeting, can be incorporated into one working document. The following sections were presented and explained to the Union with counteroffers: Section 2, Definitions; Section 13, Management Rights; Section 15, Company Strength; Section 17, Severance Pay; Section 20, Inclement Weather; Section 22, Classification of Employment and Basic Wages; Section 24, Working in a Higher Job Rank; Section 27, Wellness/Fitness Program; Section 28, Vacations; Section 33, Uniforms; Section 46, Wildland, and Section 47, Labor/Management Relations. The City had no changes to existing language in all other sections. The Union asked for clarification on Section 47, Labor Management Committee, relative to how many representatives the City will have, and Section 28, Vacations, subsection J, the City's proposed language: "and in a manner that will minimize overtime as determined by the Fire Chief." Mayor Orr advised this is a function of management, including scheduling and minimizing overtime as much as possible. Mayor Orr recessed the special meeting at 8:38 p.m. to allow Union representatives to caucus.

Mayor Orr reconvened the special meeting at 10:05 p.m. In response to the governing body's previously noted proposals, the Union presented counteroffers to the following sections: Section 2, Definitions; Section 13, Management Rights; Section 15, Company Strength; Section 17, Severance Pay; Section 22, Classification of Employment and Basic Wages; Section 24, Working in a Higher Job Rank; Section 27, Wellness/Fitness Program; Section 28, Vacations; Section 33, Uniforms; Section 46, Wildland, and Section 47, Labor/Management Relations.

It was advised that the next special meeting would be held March 6, 2017, and that an updated "shared" proposal would be provided.

Mayor Orr stated the purpose of the special meeting had been met, and there being no other business previously noted for the special meeting, adjourned the meeting at 10:50 p.m.

Submitted by,

Kylie Soden
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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